

Plant Telephone Company
P.O. Box 187
1703 U.S. Highway 82 West
Tifton, Georgia 31793

May 31, 2022

Chief, Foreign Investment Review Section (FIRS)
Deputy Chief, Compliance and Enforcement (FIRS)
On Behalf of the Assistant Attorney General for National Security
United States Department of Justice
National Security Division
175 N Street, NE
Washington, DC 20530

Subject: TT 21-073 to -074; ITC-T/C-20211104-00161; WC 21-432

Application by Plant Telephone Company for authority pursuant to Section 214 of the Communications Act of 1934, as amended, to transfer control of domestic and international Section 214 Authorizations.

Dear Sir/Madam:

This Letter of Agreement (“LOA” or “Agreement”) sets forth the commitments that Plant Telephone Company, along with its wholly owned subsidiaries, Plant TiftNet, Inc., Plant Long Distance Company, and Plant Telenet, Inc., (together “Plant”) and TruVista Communications, Inc (together “Parties”) makes to the U.S. Department of Justice (“USDOJ”), including the Federal Bureau of Investigation (“FBI”), to address national security and law enforcement risks arising from the above-referenced application to the Federal Communications Commission (“FCC”) requesting consent to assign, or to transfer control of domestic and international authorizations to provide global or limited global resale-based services between the United States and permissible international points pursuant to Section 214 of the Communications Act of 1934, as amended, 47 U.S.C. § 214, and the implementing regulation at 47 C.F.R. § 63.18(e)(2).¹

Parties certify as true and correct, under penalties outlined in 18 U.S.C. § 1001, all statements they or their representatives have made to USDOJ, the Department of Homeland Security, the Department of Defense, and the FCC in the course of the review of the above-referenced application that was conducted pursuant to Executive Order 13913², and they hereby adopt those statements as the basis for this LOA.

Definitions

¹ See FCC No: ITC-T/C-20211104-00161.

² 85 Fed. Reg. 19643 (Apr. 8, 2020).

1. For purposes of this LOA, the following definitions apply:

a. “Access” means: (1) to enter a location; or (2) to obtain, read, copy, edit, divert, release, affect, alter the state of, or otherwise view data or systems in any form, including through information technology (IT) systems, cloud computing platforms, networks, security systems, and equipment (software and hardware). For the avoidance of doubt, Access shall be construed broadly to include rather than exclude considered conduct.

b. “Call Detail Record” (“CDR”) means the data records or call log records that contain information about each call made by a user and processed by a switch, call manager, or call server.

c. “Customer Proprietary Network Information” (“CPNI”) means as set forth in 47 U.S.C. § 222(h)(1).

d. “Cybersecurity Incident Response Plan” means a plan or processes put in place to develop and implement the appropriate activities to take action regarding a detected cybersecurity event that has been determined to have an impact on the organization prompting the need for response and recovery.

e. “Date of FCC Approval” means the date on which the FCC releases a public notice granting the FCC Application.

f. “Domestic Communications” (“DC”) means:

- (i) Wire Communications or Electronic Communications, as defined by 18 U.S.C. § 2510, (whether stored or not), from one location within the United States, including its territories, to another location within the United States; or
- (ii) The U.S. portion of a Wire Communication or Electronic Communication (whether stored or not) that originates or terminates in the United States or its territories.

g. “Domestic Communications Infrastructure” (“DCI”) means any Plant system that supports any communications originating or terminating in the United States, including its territories, including any transmission, switching, bridging, and routing equipment, and any associated software (with the exception of commercial-off-the-shelf (“COTS”) software used for common business functions, *e.g.*, Microsoft Office) used by, or on behalf of, Plant to provide, process, direct, control, supervise, or manage DC but would not include the systems of entities for which Plant has a contracted arrangement for interconnection, peering, roaming, long-distance, or wholesale network access.

h. “Electronic Surveillance” means:

- (i) The interception of wire, oral, or electronic communications as set forth in 18 U.S.C. § 2510(1), (2), (4) and (12), respectively, and electronic surveillance as set forth in 50 U.S.C. § 1801(f);
- (ii) Access to stored wire or electronic communications, as referred to in 18 U.S.C. § 2701 et seq.;
- (iii) Acquisition of dialing, routing, addressing, or signaling information through pen register or trap and trace devices or other devices or features capable of acquiring such information pursuant to law as set forth in 18 U.S.C. § 3121 et seq. and 50 U.S.C. § 1841 et seq.;
- (iv) Acquisition of location-related information concerning a subscriber or facility;
- (v) Preservation of any of the above information pursuant to 18 U.S.C. § 2703(f); and
- (vi) Access to or acquisition, interception, or preservation of, wire, oral, or electronic communications or information as described in (i) through (v) above and comparable state laws.

i. “Foreign” means non-United States, or its territories.

j. “Geolocation Data” means any information collected by Plant from its customers regarding a customer’s location or the customer’s device location.

k. “Government” means any government, or governmental, administrative, or regulatory entity, authority, commission, board, agency, instrumentality, bureau or political subdivision, and any court, tribunal, judicial or arbitral body.

l. “Internet Protocol Detail Record” (“IPDR”) means information about internet protocol-based usage and other activities that can be used by operation support systems (“OSS”) and business support systems (“BSS”) by recording data statistics that provide network insight on capacity, subscriber usage, and proactive network maintenance.

m. “Lawful U.S. Process” means U.S. federal, state, or local court orders, subpoenas, warrants, processes, directives, certificates or authorizations, and other orders, legal process, statutory authorizations and certifications for Electronic Surveillance, physical search and seizure, production of tangible things or Access to or disclosure of DC, call-associated data, transactional data, Subscriber Information, or associated records.

n. “Managed Network Service Provider” (“MNSP”) means any third-party that has Access to Principal Equipment for the purpose of:

- (i) network operation; provisioning of Internet and telecommunications services; routine, corrective, and preventative maintenance, including switching, routing, and testing; network and service monitoring; network performance, optimization, and reporting; network audits, provisioning, creation and implementation of modifications or upgrades; or
- (ii) provision of DC or operation of DCI, including: customer support; OSS; BSS; Network Operations Centers (“NOCs”); information technology; cloud operations/services; 5G (Software Defined Networking, Network Functions Virtualization, Applications); and datacenter services and operations.

o. “Network Operations Center” (“NOC”) means any locations and facilities performing network management, monitoring, accumulating accounting and usage data, maintenance, user support, or other operational functions for DC.

p. “Offshore” means performing obligations of this LOA using entities and personnel outside of the territorial limits of the United States, whether or not those entities or personnel are employees of Plant.

q. “Outsource” means, with respect to DC, supporting the services and operational needs of Plant at issue in this LOA using contractors or third parties.

r. “Personally Identifiable Information” or “PII” means any information that uniquely identifies and correlates to a natural person or can be used to distinguish or trace a natural person’s identity, alone, including his or her name, social security number, or biometric records, or when combined with other personal or identifying information that is linked or linkable to a specific individual, including date and place of birth, or parent’s surname.

s. “Principal Equipment” means all telecommunications and information network equipment (*e.g.*, hardware, software, platforms, operating systems, applications, protocols) that supports core telecommunications or information services, functions, or operations.

t. “Security” means a condition that results from the establishment and maintenance of protective measures that enable an organization to perform its mission or critical functions despite risks posed by threats to its use of systems. Protective measures may involve a combination of deterrence, avoidance, prevention, detection, recovery, and correction that should form part of the organization’s risk management approach.

u. “Security Incident” means:

- (i) Any known or suspected breach of this LOA, including a violation of any approved plan, policy, or procedure under this LOA;
- (ii) Any unauthorized Access to, or disclosure of, U.S. Records;
- (iii) Any unauthorized Access to, or disclosure of, information obtained from or relating to Government entities; or
- (iv) Any one or more of the following which affect the company's computer network(s) or associated information systems:
 - A. Unauthorized disruptions to a service or denial of a service;
 - B. Unauthorized processing or storage of data;
 - C. Unauthorized modifications to system hardware, firmware, or software, including the identification of vulnerabilities introduced through a cyber supply chain compromise;
 - D. Unplanned incidents that cause activation of Plant's Cybersecurity Incident Response Plan;
 - E. Attempts from unauthorized sources to Access systems or data if these attempts to Access systems or data may materially affect the company's ability to comply with the terms of this LOA; or
 - F. An unauthorized occurrence that (1) actually or imminently jeopardizes the integrity, confidentiality, or availability of information or an information system; or (2) constitutes a violation or imminent threat of violation of law, security policies, security procedures, or acceptable use policies.

v. "Sensitive Personal Data" means sensitive personal data as set forth in 31 C.F.R. § 800.241.

w. "Subscriber Information" means any information of the type referred to and accessible subject to the procedures set forth in 18 U.S.C. § 2703(c)(2) or 18 U.S.C. § 2709, as amended or superseded.

x. "U.S. Records" means Plant's customer billing records, Subscriber Information, PII, Sensitive Personal Data, CDRs, IPDRs, CPNI, Geolocation Data, and any other information used, processed, or maintained in the ordinary course of business related to the services offered by Plant within the United States, including information subject to disclosure to a U.S. federal or state governmental entity under the procedures set forth in 18 U.S.C. § 2703(c), (d) and 18 U.S.C. § 2709.

Personnel

2. Plant agrees to designate and maintain a U.S. law enforcement point of contact ("LEPOC") in the United States who will be subject to prior approval by USDOJ, including the FBI. The LEPOC shall be a U.S. citizen residing in the United States or its territories unless

USDOJ otherwise agrees in writing. The LEPOC must be approved by the FBI to receive service of Lawful U.S. Process including for U.S. Records, and, where possible, to assist and support lawful requests for Electronic Surveillance or production of U.S. Records by U.S. federal, state, and local law enforcement agencies.

3. Plant agrees to provide the LEPOC's PII to USDOJ within 15 days of the Date of FCC Approval. USDOJ agrees to object or non-object within 15 days from receiving the LEPOC's PII.

4. Plant agrees to notify USDOJ, including the FBI, in writing at least 30 days prior to modifying its LEPOC for USDOJ and FBI objection or non-objection. For those cases involving the unexpected firing, resignation, or death of the LEPOC, written notice will be provided within five days of such event. Under these circumstances, USDOJ and FBI will object or non-object to the replacement LEPOC within 30 days of notification.

5. Plant agrees that the designated LEPOC will have Access to all U.S. Records, and, in response to Lawful U.S. Process, will make such records available promptly and, in any event, will respond to the request no later than five days after receiving such Lawful U.S. Process unless USDOJ grants an extension.

6. Plant agrees to implement, either directly or through a vendor, a process to screen existing or newly hired Plant personnel or any personnel of an approved Outsourced or Offshored service provider performing under an agreement with Plant who have Access to Plant's DC, DCI or U.S. Records. The personnel screening process shall include background investigations, public criminal records checks, or other analogous means to ascertain a person's trustworthiness. Plant further agrees to provide USDOJ with a written description of this personnel-screening process no later than 60 days after the Date of FCC Approval. USDOJ agrees to object or non-object within 60 days of receiving notice.

7. Plant agrees to notify USDOJ of all its Foreign person employees, or Foreign person employees of approved Outsourced or Offshored service providers, that have Access to U.S. Records, DC, or DCI. Plant agrees to make such notification with respect to any Foreign persons with such Access as of the Date of FCC Approval, within 30 days of the Date of FCC Approval; and thereafter, provide updated lists 1) on an annual basis as required under Paragraph 36(b) and 2) upon USDOJ request. Plant further agrees to provide the PII to USDOJ for each Foreign person so identified. USDOJ agrees to object or non-object within 30 days of receiving notice.

Lawful U.S. Process and Requests for Information

8. Plant agrees to comply with all applicable lawful interception statutes, regulations, and requirements, as well as comply with all court orders and other Lawful U.S. Process for lawfully authorized Electronic Surveillance. Plant further agrees to certify to USDOJ its compliance with the Communications Assistance for Law Enforcement Act ("CALEA"), 47

U.S.C. §§ 1001-1010, and its implementing regulations, within 30 days from the Date of FCC Approval.

9. Plant agrees to provide notice of any material modification to its lawful intercept capabilities to USDOJ within 30 days of such modification, and will re-certify its compliance with CALEA no more than 60 days following its notice to USDOJ of any material new facilities, services, or capabilities.

10. Upon receipt of any Lawful U.S. Process, Plant agrees to place any and all information responsive to the Lawful U.S. Process within the territorial boundaries of the United States and otherwise provide information to the requesting officials, in a manner and time consistent with the Lawful U.S. Process.

11. Plant agrees not to provide, or otherwise allow the disclosure of, or Access to, U.S. Records, DCI, or DC, to any Foreign Government without prior written consent of USDOJ, or a court of competent jurisdiction in the United States. Plant agrees not to give Access to any Foreign person except those persons that that Plant has screened pursuant to Paragraph 6. Plant agrees not to provide, or otherwise allow the disclosure of, or Access to, U.S. Records, DCI, or DC to entities or foreign persons that USDOJ has objected to pursuant to Paragraphs 7, or Paragraphs 26 to 32, regardless of if they have been approved pursuant to Paragraph 6.

12. Plant agrees not to disclose the receipt of Lawful U.S. Process, or compliance with Lawful U.S. Process, to any Foreign Government, Foreign entity, or any person not authorized under the Lawful U.S. Process, without prior written consent of USDOJ, or a court of competent jurisdiction in the United States.

13. Plant agrees to refer any requests for information described in Paragraphs 11 or 12 from a Foreign person or a Foreign Government, including any legal process from a Foreign Government, to USDOJ as soon as possible, but in no event later than five days after such a request, or legal process, is received by, or made known to, Plant, unless disclosure of the request, or legal process, would be in violation of U.S. law, or in violation of an order of a court of competent jurisdiction in the United States.

14. Plant agrees not to comply with such requests from Foreign Governments and Foreign persons without prior written consent of USDOJ, or an order of a court of competent jurisdiction in the United States.

15. Plant agrees to ensure that U.S. Records are not subject to mandatory destruction under any Foreign laws.

Unauthorized Access and Security Incidents

16. Plant agrees to take all appropriate measures to prevent unauthorized Access to Plant's U.S. Records, DC, and the DCI.

17. Plant agrees to take all appropriate measures to prevent any unlawful use or disclosure of information relating to Plant's U.S. Records or DC.

18. Plant agrees to prepare: (1) a Cybersecurity Plan; and (2) a comprehensive System Security Plan ("SSP") (together the "Plans"), each of which shall be guided by the current version of the National Institute of Standards and Technology (NIST) Cybersecurity Framework, and incorporate applicable controls found in NIST SP 800-53, NIST SP 800-171, or other international information security standards. Plant will provide copies of those Plans to USDOJ within 60 days of the Date of FCC Approval for objection or non-objection. Furthermore, Plant agrees that the Plans will be updated when appropriate to conform with evolving information security standards, and that Plant will make and implement additional modifications to these Plans to address concerns raised by USDOJ. USDOJ agrees to object or non-object within 60 days of receiving each version of the Plans.

19. Plant agrees that its Plans will include, among other things, policies relating to its information security, supply chain security, cybersecurity incident response, remote access, physical security, cybersecurity, third-party contractors, Outsourcing and Offshoring, maintenance and retention of system logs, protection of Lawful U.S. Process, protection of U.S. Records obtained by Plant in the ordinary course of business, and Plant's plans regarding new contracts or amendments to existing contracts with Outsourced or Offshored service providers (as defined by Paragraph 30) requiring those third parties to: a) notify Plant when required under Paragraphs 22 and 23, and b) screen personnel as required under Paragraph 6.

20. Plant further agrees to take timely and appropriate remedial measures, as recommended by the US-Computer Emergency Readiness Team/Cybersecurity and Infrastructure Security Agency ("US-CERT"/"CISA"), an Information Sharing and Analysis Center ("ISAC"), or other authority, to respond and recover from any cyber or supply chain incident and mitigate vulnerabilities.

21. Plant agrees to notify USDOJ at least 30 days prior to changing the location for storage of U.S. Records or DC to a location outside of the United States. USDOJ will object or non-object within 60 days of receipt of Plant's submission. Such notice shall include:

- a. A description of the type of information to be stored in the new location;
- b. The custodian of the information (even if such custodian is Plant);
- c. The location where the information is to be stored;
- d. Updated SSP and Cybersecurity Plans detailing the physical/logical protections at the new location; and
- e. The factors considered in deciding to store that information in the new location.

Reporting Incidents and Breaches

22. Plant agrees to report to USDOJ promptly, and in any event no later than 72 hours, after if it learns of information that reasonably indicates a known or suspected:

- a. Security Incident;
- b. Unauthorized Access to, or disclosure of, any information relating to services provided by Plant, or referring or relating in any way to Plant's customers in the United States or its territories;
- c. Any unauthorized Access to, or disclosure of, DC in violation of federal, state, or local law; or
- d. Any material breach of the commitments made in this LOA.

23. Plant agrees to require any third-party service provider to disclose to Plant any data breach of any U.S. Records or DC, or any loss of U.S. Records or DC, whether from a data breach, or other cause, within 72 hours of the third-party discovering the breach or loss. Plant agrees further to require any third-party service provider to disclose to Plant, within 72 hours of discovery, any critical exposure, threats, and vulnerabilities associated with the products or services provided to Plant that are the result of the insertion of counterfeits, unauthorized production, tampering, theft, or insertion of malicious software and hardware into such products or services or into the third-party providers' supply chain.

24. Plant agrees to notify USDOJ, including the points of contact ("POCs") listed in this LOA, in writing of any of the Security Incidents or breaches described in this LOA. Such notification shall take place no later than 72 hours after Plant has knowledge, or is informed by a third-party providing Outsourced or Offshored services to Plant, that the incident, intrusion, or breach has taken or is taking place, or sooner when required by statute or regulations.

25. Plant agrees to notify the FBI and U.S. Secret Service as provided in 47 C.F.R. § 64.2011 within seven business days after reasonable determination that a person without authorization, or in exceeding their authorization, has gained Access to, used, or disclosed CPNI, whether through Plant's network or that of a third-party used by Plant, and shall electronically report the matter to the central reporting facility through the following portal:
<https://www.cpnireporting.gov>

Principal Equipment

26. Plant agrees to provide USDOJ a Principal Equipment list within 30 days of the Date of FCC Approval; and thereafter, agrees to provide updated lists 1) on an annual basis as required under Paragraph 36(c) and 2) upon USDOJ request. USDOJ will object or non-object to the Principal Equipment list within 60 days of receipt. The Principal Equipment list shall include the following:

- a. A complete and current list of all Principal Equipment, including:
 - (i) a description of each item and the functions supported,
 - (ii) each item's manufacturer, and
 - (iii) the model and/or version number of any hardware or software.
- b. The name, address, phone number, and website for any vendors, contractors, or subcontractors involved in providing, installing, operating, managing, or maintaining the Principal Equipment.

27. Upon USDOJ request and on an annual basis as required under Paragraph 36(c), Plant agrees to notify USDOJ in writing of any new Principal Equipment of a different make or model than the Principal Equipment identified and approved pursuant to Paragraph 26 or subsequently approved by USDOJ pursuant to this paragraph, or modifying any of its Principal Equipment. USDOJ will object or non-object to such new Principal Equipment or modification to the Principal Equipment within 30 days of receipt of notice.

28. Upon USDOJ request and on annual basis as required under Paragraph 36(d), Plant agrees to provide USDOJ with the name, address, phone number, and website of any providers, suppliers, and entities that will perform any maintenance, repair, or replacement that may result in any introduction of new Principal Equipment or modification to its Principal Equipment or systems or software used with or supporting the Principal Equipment. USDOJ will object or non-object to the nominated providers, suppliers, and entities selected by Plant within 30 days of receipt of notice.

29. Upon USDOJ request and on an annual basis as required under Paragraph 36(f), Plant agrees to provide to USDOJ updated network diagrams and topology maps showing all facilities, devices, interfaces, Points of Presence (“PoPs”), exchange points, and NOCs within 60 days from the Date of FCC Approval.

Outsourced and Offshored Services

30. Plant agrees to provide USDOJ with a list of all Outsourced or Offshored service providers that provide services to Plant. Plant agrees to make such notification with respect to any Outsourced or Offshored service providers, within 30 days of the Date of FCC Approval; and thereafter, provide updated lists 1) on an annual basis as required under Paragraph 36(d) and 2) upon USDOJ request. USDOJ will object or non-object to the Outsourced and Offshored service provider list within 60 days of receiving notice. The list should include any Outsourced or Offshored service provider that provides services for:

- a. MNSP services;
- b. NOC(s);
- c. Network maintenance services;
- d. Billing or customer support services;
- e. Any operation or service that could potentially expose the DCI, DC, or U.S. Records; and
- f. Deploying any network elements, hardware, software, core network equipment, and network management capabilities, including those that are owned, managed, manufactured, or controlled by a Foreign Government.

Plant further agrees to provide the name, address, phone number, website, and description of services provided for each Outsourced or Offshored provider included on the list submitted to USDOJ pursuant to this paragraph.

31. Upon request and on an annual basis as required under Paragraph 36(d), Plant agrees to notify USDOJ in writing of any new Outsourced or Offshored service providers that will provide any of the services described in Paragraph 30. Plant agrees that such notification

shall include all of the identifying information contained in Paragraph 30 for the new Outsourced and Offshored service provider.

32. USDOJ will object or non-object to any new Outsourced or Offshored service providers within 30 days of receiving notice.

Network Operations Centers

33. Plant agrees to notify USDOJ in writing at least 60 days prior to changing the location of its NOCs to a location outside of the United States. DOJ will object or non-object to any new NOC location within 60 days of receiving notice of the proposed location change. Plant will provide the address, owner (even if Plant), PE, and MSP (as well as any new Outsourced or Offshored service providers) of the NOC with the notification, as well as appropriately updated SSP and Cybersecurity Plans.

Change in Ownership and Service Portfolio

34. Plant agrees to provide USDOJ notice of any material changes to its business, including but not limited to corporate structure changes, ownership changes,³ corporate name changes, business model changes, corporate headquarter location changes, or business operation location changes no less than 30 days in advance of such change. Plant also agrees to provide USDOJ notice within 30 days of initiating any bankruptcy proceeding or any other legal proceeding undertaken for the purpose of liquidating, reorganizing, refinancing, or otherwise seeking relief from all or some of Plant's debts.

35. Upon request and on an annual basis as required under Paragraph 36(n), Plant agrees to provide USDOJ notice of any material change to its current portfolio of services offering, including offering other services beyond its current service portfolio. USDOJ will object or non-object within 30 days of receiving notice.

Annual Report

36. Plant agrees to provide an annual report to USDOJ regarding the company's compliance with this LOA, to include:

³ "For the purposes of this paragraph, "ownership changes" means any of the following: (1) a replacement or change in control of General Partners or any of their respective successors as general partner, managing member or other similar managing fiduciary of iCON Infrastructure LLP, vehicles and accounts that invest, directly or indirectly, into Plant; (2) any new investment by, or change in existing rights of, any limited partner associated with any of the iCON Infrastructure Funds that results in the General Partner giving that limited partner a right to: (a) manage or control the activities of Truvista and/or Plant; and/or (b) gain Access to DC, DCI, or U.S. Records. In addition, with respect to any calendar month during which any Foreign ultimate beneficial owner has acquired a direct or indirect equity interest in Plant of five percent or more, Plant shall provide an updated list of all Foreign ultimate beneficial owners holding or controlling a direct or indirect equity stake (voting or non-voting) of five percent or more in Plant no later than the end of the following calendar month.

- a. If Plant submitted no notifications to USDOJ pursuant to this LOA during the preceding year, a Certification that there were no developments that Plant was required to report under the LOA during the year;
- b. Notice(s) regarding the company's handling of U.S. Records, DC, and Lawful U.S. Process (*i.e.*, whether handled properly and in accordance with the assurances contained herein) including a list of individuals with Access to U.S. Records, DC, and DCI as detailed in Paragraph 7;
- c. Updated Principal Equipment list as detailed in Paragraphs 26 and 27;
- d. Updated Service Provider List as detailed in Paragraphs 28, and 30 through 32;
- e. Notification(s) of any relationships with Foreign-owned telecommunications partners, including any network peering (traffic exchange) or interconnection relationships;
- f. Updated network diagrams and topology maps showing all facilities, devices, interfaces, PoPs, exchange points, and NOCs as detailed in Paragraph 29;
- g. Updated SSP and Cybersecurity Plans;
- h. Updated organizational chart showing all owners with a five percent or greater ownership share;
- i. Report(s) of any Security Incidents;
- j. A re-identification of the location that Plant stores U.S. Records and the types of U.S. Records collected and stored;
- k. A re-identification of the name of and contact information of the LEPOC;
- l. Notification of all filings or notices to the FCC in the prior year, and a copy of these filings if requested by USDOJ;
- m. Certification of compliance with CALEA and any other applicable U.S. lawful interception statutes, regulations, and requirements;
- n. A description of the services that Plant provides in the United States to include: the specific services provided using FCC license or authorization and other services it provides in the United States that do not require FCC license or authorization. Such a description should also detail any services provided to government or critical infrastructure customers; and
- o. Notification of any reasonably foreseeable matter that would give rise to an obligation under this LOA.

The annual report will be due one year after the Date of FCC Approval and every year thereafter. Plant agrees to send electronic copies of the annual report and all notices and communications required under this LOA to the following individuals or any other individuals that USDOJ identifies to Plant in the future: Christine Quinn, USDOJ (at Christine.Quinn@usdoj.gov); and Eric Johnson, USDOJ (at Compliance.Telecom@usdoj.gov). Upon USDOJ request, Plant agrees to provide USDOJ with paper copies of any annual report, notices, or communications required under this LOA.

Site Visits

37. Plant agrees to permit USDOJ's requests for site visits and information, approve all requests to conduct on-site interviews of Plant employees, and provide all documents necessary to verify the implementation of and compliance with the terms of this LOA, or to identify grounds for modification of this LOA.

General Provisions

38. If USDOJ finds that the terms of this LOA are inadequate to resolve any national security or law enforcement risks, Parties agree to negotiate in good faith to resolve USDOJ's concerns, according deference to the USDOJ's views on the need for modification. Rejection of a proposed modification shall not alone be dispositive, but failure to resolve national security or law enforcement concerns may result in a request that the FCC modify, condition, revoke, cancel, terminate, or render null and void any relevant license, permit, or other authorization granted by the FCC to Plant or its successors-in-interest, or any other appropriate enforcement action required to address the concern.

39. Parties agree that in the event that Plant breaches the commitments set forth in this LOA, to include conduct contrary to timely USDOJ objection to any notice submitted pursuant to this LOA, a recommendation may be made that the FCC modify, condition, revoke, cancel, enter other declaratory relief, or render null and void any relevant license, permit, or other authorization granted by the FCC to Plant or its successors-in-interest, in addition to pursuing any other remedy available by law or equity.

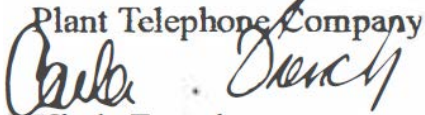
40. For purposes of counting days in this LOA, the day of the event that triggers the period is excluded, but every day thereafter is counted, including intermediate Saturdays, Sundays, and legal holidays. Include the last day of the period, but if the last day is a Saturday, Sunday, or legal holiday, the period continues to run until the end of the next day that is not a Saturday, Sunday, or legal holiday.

41. Parties agree to permit disclosure of information submitted to the FCC in confidence pursuant to 47 C.F.R. § 0.442 to Federal government departments, agencies, and offices whose principals are listed in Section 3 of Executive Order 13913.

42. Plant understands that, upon execution of this LOA by an authorized representative or attorney, or shortly thereafter, the FCC will be notified that there is no objection to grant of the application.



Danny E. Sterling
President & General Manager
Plant Telephone Company



Carla French
President & CEO
TruVista
Communications